

Definitional and Conceptual Matters

1. The Concept of Nationality

- Nationality of an individual is his quality of being a **subject of a certain state**. Hence, it is one of the **attributes given to a physical person**. Attributes of states can be and is, more often than not, supplied with further designating attributes such as **national flag, national anthem, national emblem, national currency and other symbols**. Nationality, as such is an attribute of personality. Accepting the protection of a state actually required owing **allegiance to the King**.
- It is for each state to determine under **its own law** who are its nationals; such a law can only be recognized by other jurisdictions only in so far as it is consistent with **international conventions, customs and to the principles** of law generally recognized with regard to nationality.
- The five most common modes of acquiring nationality are: **birth, naturalization, reintegration, annexation and cession**. No state is obliged to employ all five, but in practice they usually do so. Nationality is normally **acquired by birth**; the vast majority of people acquire nationality by birth. Some states make parentage alone the **decisive factor**. So that a child born of their nationals becomes “ipso facto” by birth their national likewise, be the child born at home or abroad; under such a rule illegitimate **children usually acquire the nationality of their mother**. Other states make the territory on which birth occurs the **decisive factor**. whether the parents be **citizens or aliens becomes a national of such state, whereas a child born abroad is foreign although the parents may be nationals**.
- State domestic law may also make distinction between and among different kinds of nationals. Those who enjoy full personal and political rights may, on these accounts be designated as citizens – as is the case in the U.S.A. and India. Nationality and citizenship are one of the most misunderstood terms in the world. for ordinary folk, the

term citizenship works as a substitute for nationality and vice versa. But both are distinct concepts with different meanings. Such as:

- I. Nationality denotes where an individual has been born or holds citizenship with a state. nationality is obtained through inheritance from his/her parents, whereas citizenship is a legal status in a political institution of a state. the relationship between a citizen and the state that confers this status is formal.
- II. Nationality ethnic or racial, whereas citizenship becomes legal or juristic.
- III. Nationality relates to the place or country you are born, and citizenship relates to title given to you by the government of a state after fulfilling the legal formalities or designated by the government of the state.
- IV. Nationality can not be changed, citizenship can be change.

Ethiopian Nationality Law PROCLAMATION NO. 378/2003.

- **Acquisition by Descent**
- **Acquisition By Law**
- **Cases of Marriage**
- **Cases of Adoption**
- **Special Cases; like** A foreigner who has made an outstanding contribution in the interest of Ethiopia may be conferred with Ethiopian Nationality by law irrespective of the conditions stated under Sub-Articles (2) and (3) of Article 5 of this Proclamation.

2. The concept of constitution

- This section will introduce you to conceptual issues that distinguish constitutional law from other legal studies. What do you understand by the term “constitution”? [T]he very term “Constitution” has acquired its modern meaning in English, in the course of the evolution of the English legal terminology. The Latin term ***Constitutio*** meant the very opposite of what is now understood by “***Constitution.***” A ***Constitutio*** was an enactment; later, after the 2d century, the plural form ***Constitutions*** came to mean a collection of laws (legal or non-legal rules) enacted by the Sovereign; and subsequently, the Church [the Catholic Church] too adopted the term for canonical law.

- The 19th century, all over Europe as well as in the United States, a general agreement prevailed as to the basic meaning of the term “constitution.” In 1830, and especially during the 1848 revolutions, it was very clear on both sides of the Channel what the people were asking for when they claimed a constitution. If in England, “constitution” meant the system of British liberties; *mutatis mutandis* the Europeans wanted exactly the same thing: a system of protected freedom for the individual, which — according to the **American usage of the English vocabulary** — they called a “**constitutional system.**”
- The British too, however, had from time to time, relied on particularly solemn written documents: The Magna Charta, the Confirmation Acts, the 1610-1628 Petition of Rights, the Habeas Corpus Act of 1679, the Bill of Rights, the Acts of Settlement, etc. However, that may be, and if it pleases the British to emphasize the fact that they have a constitution which is not written, this question is of secondary importance. That means written, complete document is only a means. **What really matters is the end, the *telos*.** And the purpose, the *telos*, of English, American and European constitutionalism was, from the outset, identical. This common purpose could be expressed and synthesized by just one word: the French (and Italian) term ***garantisme***. In other terms, all over the Western area people requested, or cherished, “the constitution,” because this term meant to them a fundamental law, or a fundamental set of principles, and a correlative institutional arrangement, which would restrict arbitrary power and ensure a “limited government.”
- A constitution contains two basic elements: a “plan (or frame) of government” and a “bill of rights.” For the framers of the 18th century charters it was self-evident that the two component parts could not be separated: **both were needed for a constitution to be a constitution.** They did not mean in the least that any plan of government counted to a constitution: they meant that this was the case only when a frame of government provided for a bill of rights and the institutional devices that would secure its observance. Thus, generation after generation, European public law went ahead riding simultaneously two horses:

The Constitution as “any State order,” and constitutionalism as a specific “content” of guarantees.

- Nowadays “constitution” has become an ambiguous term covering two very different meanings: a strict substantive meaning (the *garantiste* meaning), and a formal, cosmic meaning. If a constitution is defined as “any way of giving form to any State whatever,” then the question “What is the role of a constitution in a political system?” either cannot be answered, or can be answered only country by country, and even then in a very uninteresting way. For in this case the answer is that the constitution plays no role, properly speaking: It only a shorthand report which may describe - assuming that the constitution in question is applied – **the formalization of the power structure of the given country.**
- What is a constitution? **Three lines of approach** in defining the term:
 - I. In the first place, we may say: “This is what I understand when I use this term.” This kind of answer, however, leaves untouched a very basic point, namely: what is the **truth-value of this definition**? Is it only a “stipulative definition (discriptive and factual definition of constitution). According to this approach a definition of “constitution” is merely a private convention of the stipulator (i.e., a stipulative definition). This approach is only a fire escape (and an unsafe one) which actually helps the fire to grow. According to this approach, the speaker says: I propose to use the term constitution in this sense, and this is my definition of it. The emphasis is laid on the “me” for stipulations are an arbitrary choice. As Richard Robinson asserts in his valuable book “In stipulation we freely make any word mean anything we choose.” This is hardly a way out.
 - II. In the second place, we may also find it necessary to say: “The term constitution *ought to* be used in this way. A lexical kind of definition, a definition having warranted truth-value Agreement. Conventionalist approach (not advocating a behavioral ought, but a terminological and logical “ought. (Normative meaning of constitution).

- III. In the third place, we may have recourse to a classification. We may say: given the fact that we are now using the term constitution in very different meanings and to cover altogether different references, then let us speak specifically of this and that type of constitution. Classifications cannot, *per se*, solve our problems either. Classifications are only ***prima facie* a neutral device.** Classifications have a purpose in view, and differ according to their purpose. Therefore, **classifications cannot replace definitions.**
- **These three lines of approach are not mutually exclusive.** The contrary is true. But in most cases political scientists either follow solution number one, or solution number three, or both. Definitions are not private conventions of each speaker, but (whenever they have a historical referent) storehouses of past experience shaped by former practice. We bring them up to date, but their ultimate truth-value lies in the fact that they tell us how to behave *as experienced people* in matters regarding which each generation starts by having no experience. And this is precisely the reason why we are not condemned to a solipsistic conventionalism, and why we are entitled to discuss and to look for a “true ‘definition’” (touching on a basic meaning, of course) of equality, of liberty, of law, of constitution, etc.
 - The meaning of constitution is neither an arbitrary stipulation, nor something to be discovered in the “popular mind” of semi-literate majorities. At least, if we believe that rational discourse and intelligible vocabulary are to be maintained, then the meaning of “constitution” has been decided by historical testing, and has to be ascertained by adequate information and sound-thinking. That is, even if one agrees that constitutions have been shaped by historical experience in order to protect the freedom and the rights of the power addressees, the fact nonetheless remains that constitution has always been a **Janus-faced** (aware of or concerned with polarities; seeing different and contrasting aspects) concept, covering as it were between the idea of “**political order**” on the one hand and of “**limit**” on the other.

- In its present-day conceptualization, “constitution” only emerges, and the term really gained ground and acquired a **definite connotation** only in America during the years 1776-1787. Now, it is undeniable that the whole of the American tradition has understood “constitution” as a means for “limited government.”
- It is not unsafe to conclude, therefore, that, with the decline of the age of Absolutism, people began to cast about for a word which would denote the techniques to be used for controlling the exercise of State power. This term turned out to be (Americans decided this issue) “constitution.” And “constitution” was in no way born as a Janus-faced concept. The term was re-conceived, adopted and cherished not because it merely meant “political order” but because it meant much more, because it meant “political freedom.” We may put it thus: because it denoted *the* distinctive political order which would protect their liberties; For to us “constitution” means — a frame of political society, organized through and by the law for the purpose of restraining arbitrary power...
- **Sartori** talks about the interesting issue of a constitution as a two-faced concept (“Janus concept”) — on the one hand, **creating a political order, and on the other hand, limiting government power** - as **gaining its modern meaning only in the 18th century, and keeping** that meaning in the context of “guaranties” constitutions.
- **W.F. Murphy, J.E. Fleming and S.A. Barber** (1995) say, for example, that in its narrowest sense, the term “constitution” refers to the ways in which a government is organized: the reach of public authority, methods of selecting public officials and making policy, as well as division of power among institutions. **In its broadest sense, they say, a constitution reaches far beyond government and designates a people’s way of life.** Murphy discusses a wide array of functions of constitutions; His discussion of society-specific functions of a constitution is remarkable. According to Murphy, a constitution would have a different meaning for a post-conflict society than one that passed through a smooth and peaceful transition. Murphy also describes “formative force” of a constitution as varying from society to society, and he states that a written constitution may give rise to

severe conflicts between groups, as in the case of the U.S. civil war, which was fought between the unionists of the North and the separatists of the South.

- **Other important scholars** have also defined the term constitution in more or less the same way. To see but a few of these scholars:

- I. **Jennings** said that a constitution is “the document in which are set out the rules governing the composition, powers and methods of operation of the main institutions of government”. This definition principally deals with the regulatory roles of constitutional law. It also states that constitutions determine the composition of institutions of government, the powers they have and the methods through which they exercise the powers given to them. The peculiar feature of these definitions is not only the **unspecified use of the term rule** (even games have “rules”: are they the same kind of rules?), but the silence which covers the *telos* of constitutionalism. Actually, they are purely **“formal” definitions**, in the sense that they can be filled with any content whatever.
- II. **K.C. Wheare** is another scholar who has given an influential definition of a constitution, Wheare said that “a constitution is the whole system of government of a country, the collection of rules which establish and regulate or govern the government.” This definition has many noteworthy elements. The definition states that it refers to the whole system of government, which can be understood to mean the establishment of government **institutions, systems and powers**. It also states that a constitution is made up of rules, just like any other body of law - rules make; the building block of constitutions. Another very important aspect of K.C. Wheare’s definition is that **constitutional law establishes and regulates or governs government**. This is the key aspect that sets constitutional law apart from other laws in a given country.
- III. **Thomas Paine** is another of the early time scholars who attempted to give a precise definition of a constitution. Paine was an 18th century American patriot, author, and political philosopher who were impressed by the American Constitution’s creation process and its principles. He therefore sought to define the term

constitution on the basis of what he saw happening in America. So he said: A constitution is not the act of government, but of a people constituting a government and a government without a constitution is power without right.... A constitution is a thing antecedent to a government; and a government is only a creature of a constitution. Paine's definition is also instructive for many reasons. An important first noteworthy point is his attempt to distinguish between government and the people by stating that governments cannot and should not create constitutions; rather, a constitution is a thing antecedent to a government and that the latter is the creature of the former. An important normative principle that a constitution is the means **of government's legitimacy has also been underscored by Paine's definition.** In other words, dictatorships or absolute monarchs lack the legitimacy or the right to govern, though they may cling to power with force. Critics suggested that Paine's definition may be too narrow in the sense that it does not apply, for example, to unwritten constitutions.

- IV. The above definitional exercises are meant to help you see the wealth of ideas in the area and are never meant to be **exhaustive**. But they can shed enough light on what the term and concept "constitution" can mean. On the whole, although the actual ways in which scholars have attempted to define a constitution might vary, there is today an agreement on the basic defining elements of a constitution. Accordingly, a constitution is a body of rules whose pre-occupation is the structure, functions and powers of the organs of state, their relationship to one another, and to citizens or individuals. A constitution consists of laws, rules and other principles which identify and explain the institutions of government, the nature, extent and distribution of powers within those institutions, the forms and procedures through which such powers are to be exercised, and the relationship between those institutions and individuals/citizens whereby the constitution normally embodies or entrenches fundamental rights and freedoms against which state interference is prohibited and/or the state is obliged to make provisions for citizens.

3. What Are the Functions of a Constitution?

- I. **Constitutions can declare and define the boundaries of the political community.** These boundaries can be territorial (the geographical borders of a state, as well as its claims to any other territory or extra-territorial rights) and personal (the definition of citizenship). Thus, a constitution often distinguishes between those inside and outside the polity.
- II. **Constitutions can declare and define the nature and authority of the political community.** They often declare the state's fundamental principles and assumptions, as well as where its sovereignty lies. For example, the French Constitution declares that 'France is an indivisible, secular, democratic and social Republic' and that 'National sovereignty belongs to the people, who exercise it through their representatives and by means of referendums'.
- III. **Constitutions can express the identity and values of a national community.** As nation-building instruments, constitutions may define the national flag, anthem and other symbols, and may make proclamations about the values, history and identity of the nation.
- IV. **Constitutions can establish and regulate the political institutions of the community.** Constitutions define the various institutions of government; prescribe their composition, powers and functions; and regulate relations between them. The institutional provisions typically provide mechanisms for the democratic allocation and peaceful transfer of power (e.g. elections) and for the restraint and removal of those who abuse power or who have lost the confidence of the people (e.g. impeachment procedures).
- V. **Constitutions can divide or share power between different layers of government or sub state communities.** Many constitutions establish federal, quasi-federal or decentralized processes for the sharing of power between provinces, regions or other sub-state communities. These may be geographically defined (as in most federations, such as Argentina, Canada or India), or they may be defined by cultural or linguistic communities (e.g. the 1994

Constitution of Belgium, which establishes autonomous linguistic communities in addition to geographical regions).

- VI. **Con's can declare the official religious identity of the state and demarcate r/n b/n sacred and secular authorities.** This is particularly important in societies where religious and national identities are interrelated, or where religious law has traditionally determined matters of personal status or the arbitration of disputes between citizens.
- VII. **Constitutions can commit states to particular social, economic or developmental goals.** This may take the form of judicially enforceable socio-economic rights, directive principles that are politically binding on the government, or other expressions of commitment or intent.
- VIII. **A Constitution as a Charter for Government;** At minimum, an authoritative constitutional text must sketch the fundamental modes of legitimate governmental operation: who its officials are, how they are chosen what their terms of office are, how authority is divided among them, what processes they must follow, and what rights, if any, are reserved to citizens. Such a text need not proclaim any substantive values, beyond obedience to itself. If it does proclaim values, they might be those of Nazism or Stalinism, anathema to constitutional democracy.
- IX. **A Constitution as Guardian of Fundamental Rights;** Thus the question immediately arises about the extent to which a constitutional text relies on or incorporates democratic and/or constitutionalist theories. Insofar as a text is authoritative and embodies democratic theory, it must protect political participation. Insofar as it is authoritative and embodies constitutionalism, it must protect substantive rights by limiting the power of the people's freely chosen representatives.
- X. **The Constitution as Covenant, Symbol, and Aspiration;** Insofar as a constitution is a covenant by which a group of people agree to (re)

transform themselves into a nation, it may function for the founding generation like a marriage consummated through the pledging partners' positive, active consent to remain a nation for better or worse, through prosperity and poverty, in peace and war. For later generations, a constitution may operate more as an arranged marriage in which consent is passive for the degree of choice is then typically limited. Even where expatriation is a recognized right exit from a society offers few citizens a viable alternative. To agree in their collective name to a political covenant, individuals must have already had some meaningful corporate identity as a people. Thus the notion of constitution as covenant must mean it formalizes or solidifies rather than invents an entity; it solemnizes a previous alliance into a more perfect union. A constitution's formative force varies from country to country and time to time. A constitution may thus function as a uniting force, "the only principle of order," for there may be "no [other] shared moral or social vision that might bind together a nation." It is difficult to imagine what has united the supposedly United States more than the political ideas of the Declaration of Independence and the text of 1787. Reverence for the constitution may transform it into a holy symbol of the people themselves. The creature they created can become their own mythical creator. This symbolism might turn a constitutional text into a semisacred covenant, serving "the unifying function of a civil religion. In a related fashion, a constitution may serve as a binding statement of a people's aspirations for themselves as a nation. In short, a constitutional text may guide as well as express a people's hopes for themselves as a society. The ideals the words enshrine, process they describe, and the actions they legitimize must either help to change the citizenry or at least reflect their current values.

4. The place of constitution; jurisdictional issues

- **The Constitution at the Intersection of Legal, Social and Political Document**

- **Constitutions as legal instruments:** A constitution ‘**marries power with justice**’ it makes the operation of power procedurally predictable, upholds the rule of law, and places limits on the arbitrariness of power. It is the supreme law of the land, and it provides the standards that ordinary statutes have to comply with.
- **Constitutions as social declarations:** Constitutions often attempt, to varying degrees, to reflect and shape society—for example, by expressing the (existing or intended) common identity and aspirations of the people, or by proclaiming shared values and ideals. These provisions are generally found in **preambles and opening declarations**, but can also be found in oaths and mottos or on flags and other symbols that are defined by the Constitution. Other substantive provisions of the constitution, particularly those defining socio-economic rights, cultural or linguistic policy, or education, might also belong to this category.
- **Constitutions as political instruments:** The constitution prescribes a country’s decision making institutions: constitutions ‘identify the supreme power’, ‘distribute power in a way that leads to effective decision making’ and ‘provide a framework for continuing political struggle. The political provisions show how state institutions (parliament, executive, courts, head of state, local authorities, independent bodies, etc.) are constituted, what powers they have and how they relate to one another.

5. What Does “the Constitution” Include?

- **What a constitution includes is a problem, not a datum.** But where and how do we find the constitution beyond the text?
 - a) **The Text.** The most obvious candidate is the whole text and nothing but the text. Such people stress the “writtenness” of the Constitution solves problems. Scholars on this side later qualified their textualism with a commitment to “original intent” or “understanding”—additions to the text.

- b) **Less than the Text.** Anything less than the full text might seem a strange candidate, but every constitutional document drawn up in a free society is likely to reflect a bundle of compromises, necessary to obtain approval from the drafters and ratifiers but perhaps not always mutually compatible.
- I. As one solution, the German Constitutional Court has proposed reconciliation through structural interpretation: An individual constitutional provision cannot be considered as an isolated clause and interpreted alone. A constitution has an inner unity, and the meaning of any one part is linked to that of other provisions. Taken as a unit, a constitution reflects certain overarching principles and fundamental decisions to which individual provisions are subordinate..
 - II. There are constitutional principles that are so fundamental and to such an extent an expression of a law that precedes even the constitution that they also bind the framer of the constitution, and other constitutional provisions that do not rank so high may be null and void, because they contravene those principles.
- c) **Intent of the Framers;** One might claim that a text can be understood only in light of certain “understandings” and “intentions” founders took for granted. To the extent that such unspoken thoughts control the text, they become a supertext.
- d) **Other Documents.** Still other texts might have strong claims to canonicity. The Canadian Constitution Act, 1982, for example, explicitly bestows constitutional status on a number of documents. In the United States, the two most robust would be the second paragraph of the Declaration of Independence and The Federalist. The Declaration justified the creation of a new nation and set out its founding principles: We hold these truths to be self-evident, that all men are created equal; that they are

endowed by their Creator with certain unalienable rights, that among these are Life, Liberty and the Pursuit of Happiness. That to secure these rights, Governments are instituted among men, deriving their just powers from the consent of the governed. That whenever any form of Government becomes destructive of these ends, it is the Rights of the People to alter or abolish it...

- e) **Practices and Interpretations.** Some practices might become settled as to fuse into the constitution. One would expect common-law systems, with their sensitivity to prescription, the doctrine that long and unchallenged usage confers legal title, would be hospitable to such a concept.
- f) **Political Theories.** The case for inclusion of any theory in a particular constitution is empirical, and the mix between political theories may be complex. In the 1990s, democratic and constitutionalist theory are the prime candidates; but, in the recent past, versions of Fascism and Marxism have been successful contenders, and perhaps will be again in the future.

6. Features of a constitution

- In what follows, we will study certain basic features that distinguish constitutional law from other lower-level laws in a given political society. Scholars have so far indicated that there are four basic features that characterize constitutional documents. These are:

I. Supremacy;

II. Generality:

- Constitutions are generally considered to be general laws as opposed to detailed ones. They provide for a little bit of everything in the social, political, economic, cultural, legal, security and institutional realms of a nation-state.
- The broad range of the subjects with which a constitution has to deal would not allow it to be detailed and exhaustive in each and every area. A constitution therefore has to limit itself to matters of general rules and principles in as many areas as

foreseeable at the time of its making. The specific rules that are needed to regulate the specific areas should be made by the legislature of the political society.

- Though generality is a feature for all constitutions, not all constitutions in the world have a similar level of generality. Some are more detailed than others. A good example is the Indian Constitution of 1950 (as amended), which is over 390 articles long in an attempt to cover as many important concerns as possible, and which has a total length of over 300 pages. The Nigerian Constitution of 1999 has 320 articles and seven long schedules. The South African Constitution has 243 articles, and is about 100 pages long (including about 25 pages of schedules. The Pakistani Constitution of 1973 can also be considered as one of the longest, as it contains 280 articles and certain schedules, making the total length of the Constitution 108 pages. More recently, the 2010 Kenyan Constitution has 260 articles and six schedules. Although these constitutions can therefore be considered as comparatively detailed constitutional texts, this does not in any way change the generality of these constitutions. The U.S. Constitution may be considered to be the shortest or the most general constitution. The original Constitution (of 1787) was only 7 articles and 10 pages long. With the 271 amendments added to it between 1791 and 1992, its total page length has reached about 15. The French Constitution of 1958 can also be considered as one of the shortest constitutions with its 89 articles which total about 10 pages. Similarly, the Japanese Constitution of 1946 is 11 pages long and contains 103 articles. When we see the 1995 Constitution of Ethiopia, it lies somewhere in the middle between these extremes. It contains 106 articles and about 30 pages long. The above examples show us that we can distinguish among constitutions as relatively detailed or long,

short and medium-sized. It is also interesting to note that the areas in which constitutions try to be detailed vary to a great extent from system to system. The Indian Constitution has tried to list the powers of federal and regional governments, and this list occupies a considerable part of the Constitution. In most modern constitutions, the entrenchment of human rights provisions can be generally said to consume a good portion of the constitutions. In the 1995 Constitution of Ethiopia, approximately 30% of the Constitution has been devoted to the entrenchment of human and democratic rights.

III. Stability:

- Stability or permanence is also one of the basic features of constitutions. Under normal circumstances, constitutions are worked out in order to govern the social relationships in the political society for an indefinite period- of time.
- The permanence of constitutions is related to their nature and subject matter. Once a nation makes its fundamental choices at a given historical juncture, it lives under those choices made. Such fundamental choices include the form of government, the political system and the rights and freedoms that should be entrenched in the Constitution. The need for total change of those fundamental matters would not normally arise.
- This does not mean that constitutions, once made, shall remain unchanged for all times. Rather, constitutions should be able to govern today's societies, which calls for a constant dynamism of the constitution to keep pace with societal changes.
- How can we make constitutions keep pace with the changes in society?
 1. The most important way of ensuring the responsiveness of constitutions is constitutional amendment. This, as we shall later study, is the process of adding, removing, or modifying parts of an existing constitution so it continues to address the needs of the people governed by it. Once great choices are made early when the constitution was first enacted, those needs of

change that may arise from time to time may be taken care of by constitutional amendment.

2. There are also other means of validly changing constitutions to make them keep pace with the times. For example, many judges and scholars in the U.S. characterize its constitution as a “living document” and note that as the society evolves and changes over time, the courts’ understanding of general constitutional provisions evolves along with the society. **Supremacy:** This is one of the distinctive marks of all written constitutions, but not necessarily of unwritten constitutions. In simple terms, this feature underscores that a constitution is the supreme law of the land and that all other laws and actions/decisions of government organs and officials shall not contravene any provisions of the constitution. And if they do so, they shall be rendered null and void or considered as having no effect. The supremacy of a constitution is normally declared in the constitutional text, so the legal source of the Constitution’s supremacy would be the constitution itself. The rationale for the supremacy of constitutions is not difficult to see. In simple terms, this is about limiting government powers and ensuring government by law. Modern republican governments derive their powers from the people and the expression of the powers of the people is made through the constitution, which is made by the people themselves. Therefore, the powers of the government which is elected to undertake administration should be guided by the constitution, which expresses the will of the people and guarantees fundamental rights and freedoms that should not be violated by the government. Thus, this law, i.e., the constitution that limits the powers of the government should be above the government for it to control the government’s powers. The supremacy of constitutions is enforced by rendering laws and actions that contravene them ineffective. To this effect it is worthwhile to see the supremacy clause of the 1995 Constitution of Ethiopia.

IV. Rigidity.

- This feature also is peculiar to written constitutions as opposed to unwritten constitutions. The basic idea here is that the formal procedures of changing constitutions, i.e., making amendments, should not be passed in an ordinary law making procedure. More formal requirements should be met to amend constitutions. The reason for such a requirement is to protect constitutions from being amended by legislatures in simple majority decisions as ordinary laws.

7. Fundamental Principles/Values in a Constitution

- Constitutions serve as the depository of the values and principles of the political society they aspire to govern. The values and principles that are held in a given society may share important commonalities with, but also have considerable differences in content and in emphasis from, those of other societies.
- The differences relates to:
 - The peculiarities of the political society concerned;
 - The history of the state and the people;
 - The socio-cultural composition of the society;
 - And the ideology of the people and the political leadership.
- Let us look at certain comparative constitutional examples. The 1982 Constitution of the People's Republic of China states that China is a socialist state and that the socialist system, with public ownership of the means of production and land, is its basic system. The 1958 French Constitution states in its preamble that "France shall be an indivisible, secular, democratic and social Republic; it shall ensure the equality of all citizens before the law, without distinction of origin, race or religion; and that it shall respect all beliefs." It further states in its substantive provisions that "Its [France's] principles shall be: government of the people, by the people and for the people'
- Another good example of a declaration of fundamental principles appears in the 1946 Constitution of Japan on the renunciation of war. Art. 9 of the Constitution states that "aspiring sincerely to an international peace based on justice and order, the Japanese people forever renounce war as a sovereign right of the nation and the threat or use of force as means of settling international disputes."
- Let us take one more foreign example, from that of the South African Constitution. Art. 1 of the South African Constitution states that the Republic of South Africa is one sovereign democratic state founded on the values of:

- ✚ Human dignity, the achievement of equality and the advancement of human rights and freedoms.
 - ✚ Non-racism and non-sexism.
 - ✚ Supremacy of the Constitution and the rule of law.
 - ✚ Universal adult suffrage, a national common voters' roll, regular elections and a multi-party system of democratic government, to ensure accountability, responsiveness and openness.
- When we come to the Ethiopian Constitution of 1995, unmistakably, we find clearly defined principles and values under its second chapter. In fact, it should be noted that there are certain important declarations in the preamble as well as in the substantive parts (e.g., the “Policy objectives” chapter) of the Constitution that should be studied together with the second chapter to have a comprehensive view of the fundamental values and principles of the Ethiopian Constitution.
 1. Sovereignty of the People
 - Contrary to the tradition of most African constitutions (and also to past Ethiopian constitutions), this Constitution declares that all sovereign power resides in the individual groups that make up the Ethiopian people. The sovereign power spoken about in the Constitution as quoted above has to do with the power of deciding on all internal economic, political, social, cultural, legal and other such matters of importance to them jointly and individually. As regards these matters, the idea is that, there shall be no authority that can stop them from making decisions that they believe in.
 - But many people ask the question as to whether the Ethiopian Constitution should have stipulated sovereignty of the ethno-linguistic groups in such a radical way without making any reference to the trumping sovereignty of the Ethiopian polity as a whole. In any case, as regards external

sovereignty, i.e., Ethiopia's relations with foreign powers and bodies, though the Constitution does not specifically make any stipulations, a unified sovereignty is implicit. An argument for this unified sovereignty (in the Ethiopian State) can be derived from both the general understanding of the above cited Sovereignty Clause and from specific provisions of the Constitution that designate overall powers to the Federal Government.

- The 1995 Constitution of Ethiopia is consistent in pursuing the idea of the sovereignty of nations, nationalities and peoples declared in Art.8. There are many rights recognized in the Constitution that are directly served by the constitutional recognition of the locus of sovereignty to be in the Nations, Nationalities and Peoples. For example, the right to self-determination recognized in Art. 39 of the Constitution include a broad spectrum of rights, such as the right to autonomy regarding language, history, culture, self-rule and representation. These rights are to be protected in the most ideal of ways and reach because the ultimate decisions on these rights are to be taken by the concerned Nations, Nationalities and Peoples themselves.
- As regards the manner of exercise of the sovereign power by the Nations, Nationalities and Peoples, Sub- Article (3) of Art. 8 unequivocally states that it can be exercised both by direct democratic participation and indirectly through elected representatives. Of the two, as is the case in most modern societies, indirect democratic participation, i.e., through representative democracy, is the most common means of expression of sovereignty. Direct democratic participation is exercised in key instances such as referenda, periodic elections, and decision making at the lowest levels of administration, such as at the community level.

2. Supremacy of the Constitution

- It is not difficult to understand why the Supremacy Clause of the Constitution should be treated as the latter's fundamental principle. It is an assurance that the decisions of the people which are expressed and embodied in the Constitution are immutable by any force, law, body. The decisions of the people are embodied in the Constitution. No actions of bodies of representative democracy (the legislature, the executive, the judiciary and their officials) may override the decisions of the whole people as emblazoned in the Constitution. That why, a constitution should be superior to the laws and other decisions of government organs. This principle is put forth most emphatically in the Ethiopian Constitution
- The Constitution asserts its supremacy over all and any laws, customary practices, and decisions of an organ of state or a public official. If any one of these is found to contravene the Constitution, the consequence is for the former to be declared of no effect. The Supremacy Clause also imposes a duty on all citizens, organs of state, political organizations, other associations and their officials to observe and to obey the Constitution. The Constitution also supplants any possibility for assumption of state power other than in the manner provided in it.
- One last point that merits consideration in this Clause is the provision under Sub-Article (4) which stipulates that "All international agreements ratified by Ethiopia are an integral part of the law of the land" The face value meaning Of this statement is that ratified international agreements are considered to be, for all intents and purposes, part of the coipus of Ethiopian law. At a deeper level, this provision leaves many questions unanswered regarding the relationship

between the treaty laws of Ethiopia and the national laws, as well as the scope of the responsibilities of the national institutions of the country regarding international agreements.

3. Human and Democratic Rights

- The Ethiopian Constitution, Art. 10, states that human and democratic rights constitute another fundamental principle of the Constitution. The following is the full text of the two paragraphs of Art. 10: Human rights and freedoms, emanating from the nature of mankind, are inviolable and inalienable. Human and democratic rights of citizens and peoples shall be respected.
- The first paragraph provides for a principle of far-reaching significance. It straightforwardly stipulates that human rights and freedoms emanate from the nature of humankind. These rights and freedoms therefore are not given by the state or authorities but pre-exist their legal recognition by the state or the authorities. It could be said that the Ethiopian Constitution reflects a natural law theory of rights, which asserts that because of the universal nature of human beings, they are endowed with certain universal rights which are natural, inalienable and inviolable.
- What are the human rights and freedoms considered by the Ethiopian Constitution to be inalienable and inviolable? Where do we find them? Is this about all of the rights and freedoms in chapter three of the constitution, or only those in part one of the chapter? It is good to pay attention to the sort of difference Art. 10 of the Constitution maintains between human rights on the one hand and democratic rights on the other. Note that democratic rights are not considered by the Constitution to be inalienable and inviolable, nor are they considered to be emanating from the nature of mankind. It is

also very important to note that Art. 10(2) does not restrict itself to only human and democratic rights of citizens; rather it expressly states that those of peoples shall as well be respected. This is an expression of the fact that the Ethiopian Constitution does not only champion individual rights but also various kinds of group rights.

4. Separation of State and Religion(Read Art. 11 (and also Art. 27) of the Ethiopian Constitution).

- Legal and political systems across the world have taken different approaches in regulating the state-religion relationships. separationist, neutrality, and accommodationist strategies
- Commentators disagree considerably about how to define religion or the purposes of the first amendment, a disagreement provoked in part by the important consequences of any particular definition. Simply stated, the legal definition of religion determines what the first amendment will prohibit and what it will protect. It is at this threshold that bias can first enter the process of resolving religion clause conflict... Scholars in the field of the history of religion have come to a consensus that;
 - a) first, a religion's essential nature is not simply private experience;
 - b) second, religion cannot be unqualifiedly identified either with the irrational and emotive or with the rational and conceptual;
 - c) third, religion is not identical with morality;
 - d) and fourth, religion need not be theistic
- [In a recent case, *Africa v. Pennsylvania* (1981)] Frank Africa, a black man, “Naturalist Minister” of a group named MOVE, and prisoner of the Commonwealth of Pennsylvania, appealed a lower court decision denying him

a special diet of uncooked vegetables and fruits, which he requested on avowedly religious grounds. In upholding the district court's conclusion that MOVE was not a religion, and thus was not entitled to first amendment protection, the Third Circuit ostensibly employed the Seeger analysis to determine whether Africa's beliefs were part of a legally cognizable religion. "A court's task," the opinion stated, "is to decide whether the beliefs avowed are;

- a. sincerely held, and
- b. religious in nature, in the claimant's scheme of things."

The court had little difficulty in finding that Africa's beliefs were sincerely held. The opinion therefore focused on whether the beliefs were "religious in nature," enumerating the following indicia of religiousness:

- a) First, a religion addresses fundamental and ultimate questions having to do with deep and imponderable matters.
- b) Second, a religion is comprehensive in nature; it consists of a belief-system as opposed to an isolated teaching.
- c) Third, a religion often can be recognized by the presence of certain formal and external signs. Although the court repeatedly acknowledged the difficulty of its inquiry, it persisted, ruling that MOVE did not adequately satisfy any of these three prerequisites. The Africa Court's conclusion that MOVE was not a religion discloses cultural bias disguised in apparently neutral judicial reasoning. Finally, the court listed six external signs by which a religion might be recognized: "formal services, ceremonial functions, the

existence of clergy, structure and organization, efforts at propagation, observance of holidays and other similar manifestations associated with the traditional religions.” The court held that MOVE failed to exhibit any of these elements, even though the court's description of MOVE indicated the presence of four of the signs: ceremony, clergy, structure, and efforts at propagation. Rather than give weight to these factors, however, the court focused on MOVE'S lack of specified holidays or scriptures - factors that seem destined to exclude new religious movements.

- As per Art. 11 (1, 3) of the Ethiopian Constitution, state and religion are not only required to be separate, but one is prohibited from interfering into the affairs of the other. So these constitutional principles of “separation” and “non-interference” are in desperate need of being elaborated because they have to be gotten right for their enforcement. Clearly, we need to first set straight what is meant by “religion” itself. Who determines whether a given belief system is a religion or not? On a related note, we may also ask whether or not it is necessary that a given belief system be designated as a religion for someone to benefit from the rights under Art. 27 of the Constitution.
- When it comes to the 1931 Constitution of Ethiopia, it is interesting to note that the Constitution does not specifically mention the special place of the Ethiopian Orthodox Church. But one may make some inference of the fact that no mistake was to be made about this from the provisions that connect Emperor Haile Sellassie I to

King Solomon of Jerusalem and Queen Sheba of Ethiopia, a legend with biblical undertones

- The 1955 Revised Constitution of Ethiopia came out with a clear and incontrovertible stand regarding the place of the Ethiopian Orthodox Church. Art. 126 of this Constitution stipulates that the Church was an “Established Church” of the state and that it was supported by the state. It also required the Emperor to always profess the Ethiopian Orthodox faith. *
- The Provisional Military Administrative Council, the Derg, and the People’s Democratic Republic of Ethiopia governments (1974-1991) followed the socialist ideology and they understandably undermined any type of religiousness because of the teachings of the socialist philosophy on religion. As in many other areas, this represented a complete break from the establishment model we earlier noted under the 1955 Constitution.
- One could say that the 1995 Constitution of Ethiopia continued the post-1974 state of fact as regards the relationship between state and religion. This in one way is a recognition of the equality of religious denominations in the country. No one religion is less or more equal than the other. The state throughout the Republic of Ethiopia shall remain secular. The Constitution also requires that neither the State nor any religion may interfere in the affairs of the other. Thus, what we have as entrenched in the Constitution is a principle or a model of separation as well as non-interferenc

5. Transparency and Accountability of Government(Read Art. 12 of the Ethiopian Constitution.

- The principle of transparency and accountability is the last of the five fundamental principles in the Ethiopian Constitution. The Constitution unequivocally makes it mandatory that the conduct of affairs of government shall be transparent. It also states that any public official or an elected representative is accountable for any failure in official duties. In such a way it makes accountable not only political appointees or top appointed public servants, but also elected people such as house members.
- This invocation of the idea of transparency and accountability at the constitutional level is a key foundation for ensuring these public virtues. By entrenching these principles in the Constitution, the makers have made it off-limits to any government that may want to remove them from the Constitution to shy away from these duties. Putting the principle of transparency and accountability in the Constitution, however, must be followed not only by up-to-the- task legislation, but also by the implementation of the laws that are enacted. Transparency, for example, has to be measured against clear standards and requirements to be placed in detailed legislation. Similarly, accountability must be ensured by putting in place clear duties and responsibilities of the appointed and elected officials in various laws that pertain to their areas of operation, and by penal legislation in case of violations. We need to emphasize that these constitutional principles are interpretive guides and solid foundations for checks and balances that are built into the relationships and workings of the governmental branches. As such, therefore, any issue regarding transparency and accountability of an elected or appointed official first comes before a court of

law would fall within the scope of the constitutional principles of accountability and transparency. Importantly also, oversight of the executive and other branches of government by the legislature would essentially be undertaken to ensure accountability and The 1995 Constitution of Ethiopia

- The following constitutional provisions are closely related to the accountability and transparency provisions in Art. 12. Art. 54 deals with the accountability of the Members (“MPs”) of the House of Peoples’ Representatives (“HoPR”). There are three authorities that reign over these MPs: the Destitution; the will of the people; and their own conscience. How can we know that an MP is being governed by his/her conscience or not? Who is the judge on this matter? What if there is a conflict between the conscience of the MP and the Constitution? The Constitution here also says that Members of the House are representatives of the Ethiopian People as a whole. What is the significance of this statement? How would this resonate with the fact that an MP is elected from a constituency and that be. She is expected to represent it? How should an MP vote in case the interests of his constituency are found to be conflicting with those of the Ethiopian people as a whole? How does this fit into the fact that Ethiopia follows an ethnically based federal system wherein MPs coming from a given state would tend to speak for their specific state rather than for Ethiopia as a whole? Also, it is not difficult to imagine possibilities in which the will of the people may conflict with the conscience of an MP. As we said earlier, it is interesting to ponder over the question of how we can ascertain the will of the people. Do you think MPs can fully represent the will of the people? Art. 54(7) sets out

the most important way in which the authority of the people can be exercised on an MP through recall. As discussed elsewhere in this textbook in relation to the legislature, recall is exercised when there occurs a fundamental change of representational circumstances which makes it unacceptable for the people to continue to consider the MP concerned as their MP. On a related point, the Constitution says nothing about the accountability of the House of the Federation.

- In a parliamentary system, although the other branches (especially the executive) undertake a little bit of checking and balancing of the legislature, the latter stands out as more authoritative. That is what Arts. 55(17) and (18) clearly show. The real question however remains, and that is whether the executive would in reality be as subservient as the law seems to impress upon us. The executive has grown in power and importance in the 20th century due to widening responsibilities, and the fact that the most senior members of the majority party in the legislature become members of the government makes it difficult for the legislature to ensure accountability of the former. The problem of the unaccountability of the executive is more pronounced in undemocratic systems, where the executive rides roughshod on both the legislature and the judiciary.

8. Types of Constitutions

- [W]e may now turn to the problem of how we should go about classifying the variety of present-day so-called constitutions. The threefold classification suggested by Loewenstein based on the Authority they exert;
 - 1) Garantiste constitution (constitution, proper);
 - 2) Nominal constitution; I call nominal the constitutions that Loewenstein labels “semantic” (a difficult, and perhaps not quite appropriate labeling). The constitution is fully applied and activated, but its ontological reality is nothing but the

formalization of the existing location of political power for the exclusive benefit of the actual power-holders. Nominal constitutions are therefore ‘nominal’ in the very simple sense that they bare the “name” constitution. This amounts to saying that nominal constitutions are merely organizational constitutions, i.e., the collection of rules which organize but do not restrain the exercise of political power in a given polity. Actually, nominal constitutions do not really pretend to be “real constitutions.” They frankly describe a system of limitless, unchecked power. The y is not a dead letter. It is only that this letter is irrelevant to the telos of constitutionalism.

- 3) Facade constitution (or fake constitution); The facade constitutions are different from the nominal ones in that they take the appearance of “true constitutions.” What makes them untrue is that they are disregarded (at least in their essential guarantiste features). Actually they are ‘trap-constitutions.’ As far as the techniques of liberty and the rights of the power addressees are concerned, they are a dead letter.” A constitution may contain, to be sure, statements of “aspiration” and thereby provide “incentives,” even pedagogic incentives. However, this occurrence does not indicate an essential constitutional feature; it merely indicates a possible content of any type of constitution. There is often a considerable overlapping between nominal and facade constitutions. The distinction is nevertheless basic, for the two cases are indeed very different. Nominal constitutions actually describe the working of the political system (they do not abide by the telos of constitutionalism, but they are sincere reports), while the facade constitutions give us no reliable information about the real governmental process. In most cases one can clearly perceive, despite the overlaps, which is the prevalent aspect: I mean, whether a constitution is basically nominal or basically a disguise. At any rate, or otherwise, the distinction is serviceable for analytical purposes, that, for dissecting the component parts of a “mixed type” (partly nominal and partly fake) of pseudo-constitution. The distinction is serviceable from another point of

view as well, for it goes to show that if we refuse the garantiste qualification, then no line can be drawn between “constitution” and “constitutional government.” To be sure, if a constitution is not applied, this is an instance of constitution without constitutional government. But this argument applies only to the facade constitutions. What about the other possibility? In the case of nominal constitutions we no longer have a “prerogative state” that replaces de facto the “legal state”; we have instead a prerogative state legitimized by the constitution. In this latter case, then, we are confronted with a government which, by definition, will always govern according to the constitution. On what grounds may we maintain that this is not a “constitutional government”? Certainly not on the grounds of logical syntax.

- There are ranges of possibilities in which constitutions can exist. The bases of classification are the outstanding characters of the concerned constitutions. K.C. Wheare was the first prominent scholar that sought to classify constitutions into different categories. He drew out 6 groupings of constitutions. These are 1) written/unwritten; 2) Rigid/flexible; 3) Supreme/subordinate; 4) Federal/unitary; 5) Separated powers/fused powers; and 6) Republican/Monarchical. In the following, you will study the defining features of each type of constitution.

I. Written/Unwritten Constitutions;

- A written constitution is a constitution that is contained in a single document or a series of documents with or without amendments defining the constitutional law of the state concerned. This is a type of constitution that is enacted at a given time formally as a constitution by passing through certain constitution-making stages and requirements.
- Written constitutional systems are the most dominant types of constitutions as opposed to unwritten constitutions.
- Waves of written constitutions;

1. The first wave of constitution-making was experienced in the late 1700s by the individual American states, followed by the United States itself and France.
 2. Written constitution making also followed in other waves: in 1848, after World War I, and again after World War in various parts of Europe.
 3. In the 1960s, the next wave of “constitution making” was taken up by the newly freed British and French colonies in Africa.
 4. What seems to be the last round of democratic constitution making in Western Europe was fulfilled in the 1970s by Greece, Portugal and Spain.
 5. Yet another wave of constitution making has come to eastern European countries which have emerged from communist rule. These countries have had pre-communist constitutional traditions. The constitutional reform of these countries was undertaken, together with economic reform from central planning to market economies.
- As the history of these constitutional documents demonstrate, written constitutions came to the public scene following major popular demands for change — demands that became victorious. For example;
 1. In America, the people’s revolt against the British colonial administration and fight for self determination resulted finally in the 1787 Constitution.
 2. In France, the French people’s demand for freedom and liberty against the absolute monarchy forced the latter to give concessions that ultimately led to the 1791 Constitution.
 3. In Europe, after World War II, history once again made it necessary that new starts be made in Germany, Italy, France, and others whose regimes were largely responsible for the horrors of the War.

4. In colonial Africa, the various demands and liberation movements, coupled with the coming into being of the UN and a freer world after the destruction of World War second, delegitimized colonialism, leading to a fresh start with constitutions.
 5. Finally a new wave of constitution making engulfed most of the former communist European states following the fall of communism, heralded by the demise of the USSR. We can add in relation to other parts of the world such as Africa, where the post-communist world developments have had an impact as well.
- What is commonly known as an unwritten constitution is a type of constitution that does not exist in a single document, and therefore cannot be known as a constitution. The UK, Israel and New Zealand are the three famous political systems without written constitutions. The constitutional laws of these states exist in various documents and usages which are considered to be sources of constitutional law. For example, for the UK, there are various legal and non-legal sources serving as its constitutional law. The legal sources are parliamentary legislation, judicial precedents and the European Union bodies' laws and decisions. The non-legal sources of the UK constitution are rules of constitutional behavior which are considered to be enforceable or binding on those who operate the constitution, but not enforced by the law courts; nor by the presiding officers in the houses of parliament.
 - The terminology "written" and "unwritten" as applied to constitutions is, however, in many respects unsatisfactory. As will be argued shortly, it implies far greater differences between the two categories than, generally exist, but it is also lacking in descriptive content. There are several other terms which might be held to describe the British type of unwritten constitution in a more informative way, for example, customary, conventional, traditional and informal. It might even be described as a common

law constitution, though this would be open to some misunderstanding of what such systematization implied.

II. **Rigid/Flexible:**

- Classification of constitutions into “rigid” and “flexible” is made on the basis of amendment procedures or requirements of constitutions. Actually, there are two views on this issue.
 1. The one is forwarded by Lord James Bryce. According to him, a flexible constitution is one where all laws of the constitution can be amended by an ordinary law-making process. On the contrary, in a rigid constitution, the laws of the constitution can only be amended by a special procedure.
 2. However, the sense in which K.C. Wheare used the classification of constitutions into rigid and flexible is different from James Bryce’s. For Wheare, the basis for classification was whether or not a given constitution is easily amendable in practice or not. Therefore, even if a constitution entrenches in itself serious or stringent procedural requirements, as for example that of the Ethiopian Constitution (see Art. 105 of the 1995 Ethiopian constitution), it shall be considered flexible if it is often amended in practice. Where considered the constitution of Switzerland as flexible because this constitution has been regularly amended in reality. The formal requirement for amending the Swiss Constitution is referendum. According to Bryce, the Swiss Constitution could have been considered perfectly rigid. Wheare says the American Constitution is rigid because it has practically been amended very rarely.

III. **Unitary/Federal:**

- A unitary Constitution is the one that creates a system of government in which power is vested in the central government organs. The administrative sub-divisions in unitary form of government are subordinate to the center and function under the direct authority of the center.

- A Federal constitution on the other hand creates layers of government (often two but can be more) within the same polity. The layers of government so created have constitutional existence and are on most powers independent from each other. The constitution divides powers among the layers. A federal constitution serves as a covenant between the center and the regions.

IV. **Supreme/Subordinate:**

- Wheare says that a constitution is considered supreme if it cannot be changed by legislature acting alone - whether through simple or special majority procedures. A subordinate constitution, on the other hand, can be changed or amended by the legislature acting on its own in either of the two procedures.

V. **Separated powers/fused powers:**

- Constitutions are classified as such on account of their separation of the personnel and institutions of branches of government. So, if there is a substantial overlap of personnel and functions of the three branches that will be considered a “fused powers” constitution. A constitution will be considered a “separated powers” one if it allows only a limited or no overlap of personnel and functions.

VI. **Monarchical/Republican:**

- This is the last of Wheare’s classifications. In short, a constitution is monarchical if the head of state is a monarch who assumes power through hereditary succession to the throne. A monarchical constitution may put in place an absolute monarch or a constitutional monarch. Constitutional monarchs are part of the western democracies such as the UK, Japan, Spain, Norway, Belgium and the Netherlands.
- A republican constitution on the other hand is the one that institutes a head of state as an elected person, normally in the name of a president. The president in republican constitutions

may be chief -executive and head of state at the same time, or just a figure head of state without being the chief-executive. In the latter case, the chief-executive exists as a prime minister who becomes the head of government.

- Other scholars have added more grounds of classifying constitutions. The main additions include presidential/parliamentary; competitive/consolidatory; programmable/confirmatory; and manifest/latent constitutions.
 1. Presidential/parliamentary: These are types of republican constitutions that are designated on the basis of the type of the executive they put in place. Accordingly, a presidential constitution creates a form of government to be led by the president as the chief-executive, while a parliamentary constitution establishes a government to be led by a prime minister. In this case, the head of state may be a president or a monarch.
 2. A competitive constitution is said to be the one that allows a multiparty political platform for assumption of powers, while a consolidatory constitution does not allow a competitive political platform for assumption of government powers; the latter creates a situation whereby political power is held either hereditarily or by a single party.
 3. A programmable constitution includes statements of aims yet to be fulfilled in the form of policy objectives or programs - long term as well as short term. A confirmatory constitution, on the other hand, provides for regulations of the existing state of affairs.
 4. The term manifest constitution refers to the rules in the formal constitutional text, while a latent constitution refers to the vital political activity which is not specified in the constitutional text, but which plays a significant role in the political decisions to be regulated by the constitution. A

very good example of a latent constitution is the operational processes of parties and the decision making procedures and their decisions.

5. In conclusion, you need to understand that a given constitution may display different features from the different groupings. For example, a given constitution can be written, federal, separated powers, superior, rigid, republican, parliamentary, etc. But it is good to note that one constitution cannot be both written and unwritten, or rigid and flexible, or federal and unitary.

B. Policy Objectives and Principles in Constitutions

- A constitution is fundamental and supreme law which serves both as a legal and policy instrument to guide a nation's activities in all areas that concern a political society. The contents of the directive principles and policy objectives reflect primarily the peculiar situation and state of facts in the society concerned. More appropriately, as constitutions are made by the people and that they are maps on which the making peoples clearly inscribe their choices; every constitution consists of the policy objectives and principles serving the respective people making it.
- The policy objectives and principles in constitutional documents are not very common in most modern constitutions in a sense of occupying significant portions of the constitutional documents. What may serve as such, may however be found in different parts of the constitutional texts, including in the preambles. For example, one of the great constitutions of our time — the South African Constitution - does not carry separate provisions relating to directive principles.
- A constitution that provides for perhaps the largest body of directive principles is the 1950 Indian Constitution (as amended). Part four of the Indian Constitution, which is entitled "Directive Principles of State Policy," consists of directive principles in the areas of social, economic, political, administrative, legal, and environmental policy,

protection of monuments, and peace and security. Art 37 of the Constitution declares that ‘the provisions contained under the directive principles are not enforceable by any court, but the principles laid down therein are nevertheless fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws. What this means is that the directive principles do not give rise directly to legal rights and therefore are not justiciable. The principles on the other hand impose a duty on the state - federal (union), states or local - to apply these principles when they make laws and discharge other official responsibilities.

- As stated earlier, the principles contained in part four of the Indian Constitution deal with socio-economic and environmental policy, peace and security, and other such matters. As you shall later compare the directive principles in the Indian constitution with those of our Constitution, some of the provisions contain matters that are considered justiciable by our Constitution and in fact by international human rights instruments.
- The Constitution of the People’s Republic of Bangladesh (as amended up to 2004) also carries a part (Section 8-25) dealing with “Fundamental Principles of State Policy.” Section 8(2) of the Constitution states that: The principles set out in this [Fundamental Principles of State Policy] part shall be fundamental to the governance of Bangladesh, shall be applied by the State in the making of laws, shall be a guide to the interpretation of the Constitution and of other laws of Bangladesh, and shall form the basis of the work of the state and of its citizens, but shall not be judicially enforceable. The contents of the “Fundamental Principles of State Policy” in the Constitution of Bangladesh share a good amount of similarity with those of the Indian Constitution discussed above. This might be because of the socio-political and legal influences India exerts on the former as a result of the historic relations between the two societies. The “Fundamental Principles of

State Policy” of the Bangladeshi Constitution provide for matters such as free and compulsory education for all children, mass-oriented and universal system of education (Sec. 17); raising the level of nutrition and the improvement of public health (Sec. 18); creating equality of opportunity for all citizens and taking by the state of effective measures to remove social and economic inequalities and ensure equitable distribution of wealth among citizens (Sec. 19); ensuring the separation of the judiciary from the executive organs of the state (Sec.22); conservation of the cultural traditions and heritage of the people; fostering and improving the national language, literature and the arts and ensuring that all sections of the people are afforded the opportunity to contribute to the enrichment of the national culture; and protecting all cultural heritages, monuments, objects or places of artistic or historic importance (Secs. 23 and 24).

- Like the Bangladeshi Constitution, the 1973 Constitution of the Islamic Republic of Pakistan also contains a chapter on principles of policy (Art. 29-40). These principles deal with a wide variety of issues. The Constitution states that it is the responsibility of each organ and authority of the State, and of each person performing functions on behalf of an organ or authority of the State, to act in accordance with those Principles in so far as they relate to the functions of the organ or authority. They also state that the organ or authority of the State, or the person concerned, is responsible for deciding whether any such action is in accordance with the Principles of Policy. The Constitution further clearly states that the validity of an action or of a law shall not be called into question on the ground that it is not in accordance with the Principles of Policy, and no action shall lie against the State or any organ or authority of the State or any person on such ground. Just like the Indian and Bangladeshi Constitutions, the Pakistani Constitution also makes the principles and activities contained in this Part non-justiciable.

- The Nigerian Constitution of 1999 supplies another very interesting example in providing “fundamental objectives and directive principles of the state policy” under its chapter two, to which it devotes twelve lengthy articles (Arts. 13-24) covering various policy principles and objectives. To cite, but one example, Art. 14(3) and (4) provide the following: 3) The composition of the Government of the Federation or any of its agencies and the conduct of its affairs shall be carried out in such a manner as to reflect the federal character of Nigeria and the need to promote national unity, and also to command national loyalty, thereby ensuring that there shall be no predominance of persons from a few State or from a few ethnic or other sectional groups in that Government or in any of its agencies. (4) The composition of the Government of a State, a local government council, or any of the agencies of such Government or council, and the conduct of the affairs of the Government or council or such agencies shall be carried out in such manner as to recognise the diversity of the people within its area of authority and the need to promote a sense of belonging and loyalty among all the people of the Federation.
- The 1995 Constitution of Ethiopia also contains “National Policy Principles and Objectives” under its 10th Chapter (Arts. 85-92). Unlike the policy principles contained in the other constitutions we have studied before, the Ethiopian Constitution does not state whether the provisions or principles in this Chapter are justiciable or non-justiciable. Art. 85 of the Constitution provide an interesting direction to both the Federal and State governments regarding the value or purpose of the policy principles and objectives. It states that “any organ of Government shall, in the implementation of the Constitution, other laws and public policies, be guided by the principles and objectives specified under this Chapter.”
- The above provision of the Constitution therefore gives the policy objectives and principles a veiy important place in the implementation of laws and policies in the country. They are made to

be the guiding star or beacon light for government actions. Read Arts. 85-92 of the Ethiopian Constitution. As you can see, except for the first two articles (Arts. 86 and 87) which are called “principles,” the remaining ones are called “objectives.” Look closely at each of these principles and objectives, and try to make sense of how they should be used by the governments in their day to day activities

